

Advisory Council for the Welfare of the Scheduled Castes in Assam Rules, 1967

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State of Assam - Act

Advisory Council for the Welfare of the Scheduled Castes in Assam Rules, 1967

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Advisory Council for the Welfare of the Scheduled Castes in Assam Rules, 1967

Rule ADVISORY-COUNCIL-FOR-THE-WELFARE-OF-THE-SCHEDULED-CASTES-IN-ASSAM-RULES-1967 of 1967

Published on 3 May 1967

Commenced on 3 May 1967

[This is the version of this document from 3 May 1967.]

[Note: The original publication document is not available and this content could not be verified.]

Advisory Council for the Welfare of the Scheduled Castes in Assam Rules, 1967

Published vide Notification No. TAD/ACB/72/67/5, dated the 3rd May, 1967, Assam Gazette, Part-2A, dated 21st June, 1967, page 1521-1524

Last Updated 10th February, 2020

Notification No. TAD/ACB/72/67/5, dated the 3rd May, 1967. - In supersession of the Rules published with this Department Notification No. TAD/SC/66/57, dated 31st January, 1959, No. TAD/ACB/6/62/17, dated the 13th August, 1962 and No. TAD/ACB/6/62/79, dated the 10th September, 1964, the Governor of Assam is pleased to publish the following Rules for the constitution of the Advisory Council for the Welfare of the Scheduled Castes in Assam.

1.

These rules shall be called "The Advisory Council for the Welfare of the Scheduled Castes in Assam Rules, 1967."

2.

These rules shall come into force at once.

3.

In these rules unless the context otherwise requires.-

(a)

"Council" means the "Advisory Council" constituted in accordance with these rules.

(b)

"Assembly" means the "Legislative Assembly of Assam."

(c)

"Governor" means the "Governor of Assam".

(d)

"Member" means the "Member of the Advisory Council."

(e)

"Secretary" means the "Secretary of the Advisory Council".

(f)

"State" means the "State of Assam."

(g)

"Tribal Areas and Welfare of Backward Classes Department" means the "Tribal Areas and Welfare of Backward Classed Department" of the Government of Assam.

4.

(1)

There shall be an Advisory Council consisting of the following members-

(i)

All the members of the Legislative Assembly of Assam belonging to Scheduled Castes

(ii)

A member or members of the Lok Sabha from Assam belonging to Scheduled Caste.

(iii)

President or a representative of All Assam Scheduled Castes Association.

(iv)

The Commissioner of Agricultural Production, Assam, Ex-officio.

(v)

Development Commissioner, Assam, Ex-officio.

(vi)

Commissioner of Plains Division, Assam, Ex-officio.

(vii)

Secretary to the Government of Assam, Tribal areas and Welfare of Backward Classed Department, Ex-officio.

(viii)

The Deputy Commissioner for Scheduled Castes and Scheduled Tribe I/C of Plains Districts of Assam, Ex-officio.

(ix)

Any other member or members as may be nominated by the Government.

(2)

The Council shall have a Chairman and a Vice-Chairman. The Minister-in-Charge, Tribal Areas and Welfare of Backward Classes Department shall be the Chairman. The Vice-Chairman shall be elected from amongst the non-official members by majority of votes of the Council.

(3)

The headquarters of the Vice-Chairman for the purpose of calculating his Travelling Allowance or Daily Allowance as provided in Rule 20 below shall be his normal place of residence.

(4)

The Vice-Chairman shall administer all the normal functions of the Council as may be delegated from time to time by the Chairman.

5.

The Council shall have a Secretariat Staff consisting of a Secretary and such other officers and staff as the Governor may consider necessary to appoint. The office of the Council will be located at Shillong (now Guwahati) and will form part of the Tribal Areas and Welfare of Backward Classes Department.

6.

The Council unless sooner dissolved by the Governor, shall continue until the dissolution of the existing Assembly and shall be reconstituted as soon as possible after the General Elections to the Assembly.

7.

(1)

It shall be the duty of the Council to advise the Government of Assam generally on all matters pertaining to the Welfare of the Scheduled Castes in Assam as may be referred to it by the Governor.

(2)

In particular and without prejudice to the generality of sub-rule (1) the Council shall-

(a)

assess the requirements of the Scheduled caste people and formulate schemes for their welfare.

(b)

review from time to time of the working of sanctioned schemes and appraise and evaluate the benefits derived therefrom with a view to suggesting improvements or changes, where necessary.

(c)

study the problem of untouchability, review the schemes undertaking for the removal of untouchability and suggest further measures consideration necessary for the eradication of untouchability.

8.

(1)

The Council shall meet at least once a year at such a place and on such date or dates as the Secretary may appoint with the approval of the Chairman.

(2)

The Chairman or in his absence, the Vice-Chairman or in the absence of both the Chairman and the Vice-Chairman any other member chosen by the members present from amongst themselves shall preside over a meeting of the Council.

(3)

The Governor, whenever considered necessary may direct that the Council may have a joint meeting at Shillong (now Guwahati) alongwith the Advisory Council for Autonomous Districts of the State and/or the Advisory Council for Welfare of the Scheduled Tribes living in the Plains Districts of Assam.

9.

The quorum shall be five or one-third of the total number of the members of the Council whichever is less.

10.

(1)

Matters shall be brought before a meeting of the Council for discussion by direction of the Governor.

(2)

A member who wishes to bring any matter for consideration at a meeting shall specify it in a memorandum indicating the salient facts and the points for consideration and send the memorandum to the Secretary who shall obtain the Chairman's direction thereon. The direction of the Chairman as to whether the matter referred by the member falls within the purview of the Council or not shall be final.

11.

The Agenda of a meeting of the Council shall be prepared by the Secretary with the approval of the Chairman.

12.

The Secretary shall ordinarily give at least one month's notice for any meeting of the Council, but in case of emergency the meeting of the Council may be called at short notice as the Chairman may deem sufficient.

13.

The Secretary shall inform members of the Council, the place, date, and time fixed for the meeting and shall also send a copy of the Agenda for the meeting together with a memorandum indicating the salient facts of each case, points for consideration and any other papers that may be necessary for consideration of each case included in the agenda.

14.

(a)

The Chairman may invite a Minister, Minister of State, Deputy Minister or Parliamentary Secretary of the State to attend any meeting and to take part in a discussion of the Council.

(b)

The Chairman may invite from time to time, the representatives of the non-official organisations connected with the welfare of the Scheduled Castes of the State, i.e. Kasturba Gandhi National Memorial Trust, Assam, Harijan Sevak Sangha, Assam, etc. to attend the meetings of the Council and to take part in the deliberations.

15.

Any officer of the State other than the Ex-officio members whose presence is considered necessary by the Chairman for consideration of any matter before the Council shall attend a meeting of the Council as and when required to do so.

16.

(1)

The Secretary shall keep a record of the discussion and recommendations of the meetings and shall circulate a copy of the proceedings of the meeting of the Council to every member.

(2)

The recommendations of the Council shall as far as possible be unanimous but if at any time, no unanimous recommendation can be arrived at in respect of any particular matter before it, the Chairman shall ascertain the recommendation of the majority by taking the vote of the members present by show of hands and the recommendation of the majority so determined shall be deemed to be the recommendation of the Council.

Provided that the views of the dissenting members present and voting shall be recorded by the Secretary to form as recorded of the proceedings:

Provided further that Ex-officio members shall not be eligible to vote.

17.

The proceedings of the meeting of the Council shall form part of the records of the Council.

18.

The Council may, from time to time, by a resolution passed at a meeting, appoint a committee or committees of its members to examine and report on any particular matter specified in the resolution. The Council may co-opt on the Committee or Committees non-officials who are not its members and may also associate with any such committees such officers of the State as may be nominated in that behalf by the Council.

19.

For attending a meeting of the Advisory Council the members and the special invites shall be entitled to draw travelling allowance as follows-

(a)

Official members shall draw such travelling allowance as may be admissible under the rules applicable to them.

(b)

Non-official members and non-official special invites shall draw such travelling allowance and daily allowance as admissible under subsidiary Rule 309 (a) as amended.

20.

The Vice-Chairman shall be entitled to travelling allowance and daily allowance of a first grade officer as admissible under the rules whenever he attends the Council meetings in Shillong (now Guwahati) or comes to the Shillong (now Guwahati) in connection with the work of the Council or when on tour in connection with the affairs of the Council.

21.

The Governor may, from time to time, amend these rules.

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